

Court No. - 42

Case :- WRIT - C No. - 16176 of 2023

Petitioner :- Maya Devi And 6 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Lavlesh Kumar Shukla

Counsel for Respondent :- C.S.C.,Kaushalendra Nath Singh

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Learned counsel appearing for the respondent-Nigam, prays for and is granted one week's time to seek instructions.

Put up this case on 22 May 2023, as fresh showing the name of Shri Abhishek Srivastava as counsel for the respondent.

Order Date :- 12.5.2023

Mukesh Pal

Court No. - 40

Case :- WRIT - C No. - 16176 of 2023

Petitioner :- Maya Devi And 6 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Lavlesh Kumar Shukla

Counsel for Respondent :- C.S.C.,Abhishek
Srivastava,Kaushalendra Nath Singh

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. As it is informed that Sri Abhishek Srivastava, Advocate is to appear on behalf of the respondent-Paschimanchal Vidyut Vitaran Nigam Ltd.
2. Put up this case again as fresh on 24th July, 2023.
3. In the meanwhile, he may obtain instruction in the matter.

Order Date :- 11.7.2023

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Court No. - 40

Case :- WRIT - C No. - 16176 of 2023

Petitioner :- Maya Devi And 6 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Lavlesh Kumar Shukla

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Kaushalendra Nath Singh

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

Put up this matter as fresh on 27.7.2023.

Order Date :- 24.7.2023

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Court No. - 40

Case :- WRIT - C No. - 16176 of 2023

Petitioner :- Maya Devi And 6 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Lavlesh Kumar Shukla

Counsel for Respondent :- C.S.C.,Abhishek
Srivastava,Kaushalendra Nath Singh

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Lavlesh Kumar Shukla, learned counsel for the petitioners, Sri Abhishek Srivastava, learned counsel for the respondent Nos. 2 to 5.

2. Present writ petition is preferred inter-alia with following main reliefs:-

"I. issue a writ, order or direction in the nature of certiorari for quashing the order impugned dated 02.03.2023 issued by the respondent no. 3 whereby respondents are charging more than 10 lacs for granting domestic electric connection from the petitioners (Annexure no. 5 to the writ petition).

II. issue a writ, order or direction in the nature of mandamus directing the respondents to grant domestic electric connection in favour of petitioners on charges of electric connection as admissible under the law and further not to impose the charge of poles, wiring and other installation charges to the petitioners.

III. Issue a writ, order or direction in the nature of mandamus commanding the respondent No. 2 to conduct free and fair spot inspection/survey of Goga Vatika, Khasra No. 40, Village Kathera, Post Dadri, Tehsil Dadri, District Gautam Budh Nagar (U.P.) where the petitioners resides for the purposes of domestic electric connection by any independent authority."

3. Vide order dated 11.07.2023, we have asked Sri Abhishek Srivastava who represents the respondent-Paschimanchal Vidyut Vitran Nigam Ltd. to seek instructions in the matter.

4. On the matter being taken up today, Sri Abhishek Srivastava has placed detailed instructions dated 26.07.2023, the same is accepted and it is taken on record.

5. Sri Abhishek Srivastava has placed emphasis upon Clause 4.6 (e) (i) (ii) (iii) of the Uttar Pradesh Electricity Supply Code, 2005. He further submits that there are 44 plots in the Goga Vatika and its estimated load is 106 KW. As per Clause 4.6 (e) (iii), the Licensee shall commence the work after the applicant, has

deposited the full amount of the estimate.

6. He further submits that in case the petitioners have any grievance regarding the estimate, further remedy is available under Clause 4.6 (f) of the Uttar Pradesh Electricity Supply Code, 2005 which provides that the disputes regarding the estimate may be referred to the authority that is one level higher than the sanctioning authority and if the applicant is still aggrieved he may approach the Consumer Grievance Redressal Forum for adjudication.

7. He further submits that as per the mandate of this Court, the estimate is already provided to the petitioners, in case the petitioners are still having any grievance, they may approach the Higher Forum in view of the provisions contained in Clause 4.6 (f) of the Uttar Pradesh Electricity Supply Code, 2005.

8. Considering the aforesaid facts and circumstances of the case, we are not inclined to proceed further in the matter. Needless to say, in case the petitioners are still aggrieved, they may invoke the remedy available under the law.

9. With these observations, the present writ petition stands **disposed of**.

Order Date :- 27.7.2023

Jaswant